

injured her hand during the fall when she grabbed an exposed cement edge. (*Id.* at 1077-1078.) The plaintiff argued trail immunity did not apply because her injury was not caused by a condition of the trail and that defendant created the dangerous condition by allowing dogs to run unleashed in the park. (*Id.* at 1083.) The court rejected this argument held the path was used for the recreational purpose of bringing a dog to an unleashed area of a dog park. (*Id.* at 1079.) The court held further: **“It is well-established that the immunity covers negligent maintenance of a trail, such as allowing accumulation of debris as alleged here.”** (*Id.* at 1084.)

Here, the hose was positioned to lay flat on and followed the yellow divider line on the road. (See Sulahian Decl., Exh. 1.) Applying *Nealy* and *Amberger-Warren*, the hose was an integral part of the trail and allowing the hose to lay flat on and following the yellow divider line is covered by recreational immunity.

The evidence presented does not support Plaintiff’s arguments to rebut County’s evidence. Plaintiff fails to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).) Trail immunity applies. Because governmental immunity is jurisdictional, not an affirmative defense (*Richardson-Tunnell, supra*, 157 Cal.App.4th at 1061), the Court need not reach the merits of whether the hose was open and obvious. The Court **GRANTS** Defendant County’s motion for summary judgment.

Prevailing party shall submit proposed judgment within fourteen (14) days of this Order. The Court vacates all currently set hearing dates and schedules an OSC re receipt of judgment for September 11, 2026, at 8:30 a.m.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600859	LETTS vs TESLA, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling: The Court **GRANTS** Defendant Tesla’s Motion to Compel Arbitration. The Court stays the matter and vacates all currently set future hearing dates. Status conference re arbitration scheduled for July 27, 2027, at 8:30 a.m.

Defendant, Tesla, brings this motion to compel arbitration pursuant to Plaintiff’s arbitration agreement (AA) with Tesla, and to stay the civil action pending arbitration. (Federal Arbitration Act (FAA) 9 USC §§ 1-16; CCP § 1281, *et. seq.*) Tesla asked Plaintiff to stipulate to arbitration pursuant to the AA; Plaintiff declined. Tesla asserts that the AA is valid, enforceable, and that Plaintiff’s claims fall squarely within its scope.

Plaintiff opposes the motion arguing that Tesla has shown it has an online clickwrap interface process to *order* a vehicle but, not that Plaintiff’s placement of her order unambiguously manifested assent to that agreement or to an arbitration agreement; while Tesla argues Plaintiff’s claims fall within the AA, it has not proven the

existence of a contract; and, that if the Court does not deny the motion, it should be continued to permit limited discovery on the sole issue of formation.

The Reply asserts that Plaintiff placed the order for the vehicle and thereby agreed to the terms and conditions of the Motor Vehicle Order Agreement (MVOA); that the AA is binding and enforceable; that Plaintiff concedes she ordered the vehicle; the fact that Plaintiff does not “recall” seeing/clicking on a hyperlink does not excuse formation of the AA; and, that Plaintiff had the option to review and opt-out of arbitration even after placing the order.

Analysis:

The FAA

In its motion, Tesla acknowledges that by the express terms of the AA, arbitration may be enforced under California law. (CCP § 1281.2, *et. seq.*; Dec.Kim ¶ 3, Ex. “1”, p. 3.)

Nonetheless, Tesla also argues that the AA is governed by the FAA. The FAA generally governs arbitration in written contracts involving interstate commerce and authorizes enforcement of arbitration clauses unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. §2.) The FAA embodies a strong federal policy favoring arbitration. To assure uniform results as to arbitrability of disputes subject to the Act, conflicting state law is preempted under the Supremacy Clause. (*Southland v. Corp. v. Keating* (1984) 465 U.S. 1, 12.) The party claiming that the contract involves interstate commerce and the FAA preempts state law has the burden of proving that the underlying transaction involved interstate commerce. (*Woolfs v. Sup. Ct. (Turner)*(2005) 127 Cal.App.4th 197, 211-214.) Furthermore, the FAA applies when an arbitration agreement expressly states that it is governed by the FAA. (*Aviation Data, Inc. v. Am. Express Travel Related Servs. Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535; *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.)

Here, Tesla argues that the FAA requires enforcement of the AA because it is: 1) in writing (Dec.Kim ¶ 3, Ex. “1”, p. 3); and, 2) in connection with an automotive sales contract, which necessarily involves interstate commerce even when used intrastate. (*U.S. v. Oliver* 60 F.3d 547, 550 (9th Cir. 1995); see also *Sanchez v. Valencia Holding Co.* (2015) 61 Cal.4th 899, 906.) Notably, Plaintiff does not address the argument that the FAA governs the AA. Instead, the Opposition entirely focuses on whether the AA exists.

Existence of a Valid Arbitration Agreement

Under both federal and state statutes, the threshold question when presented with a petition (or motion) to compel arbitration is whether there is an agreement to arbitrate. (*Cheng-Canindin v. Renaissance Hotel Assocs.* (1996) 50 Cal.App.4th 676, 684; FAA 9 USC §2; CCP §1281.) “In California, ‘[g]eneral principles of contract law

determine whether the parties have entered a binding agreement to arbitrate.’ [Citation.]” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US) LLC* (2012) 55 Cal.4th 223, 236; CCP §1281.2.) “An essential element of any contract is the consent of the parties or mutual assent. [Citations.]” (*Donovan v. RRL Corp.* (2001) 26 Cal.4th 261, 270, Civ. Code §§ 1550, 1565.) The party seeking to compel arbitration bears the initial burden of proving the existence of a valid arbitration agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842.)

“As a preliminary matter the [trial] court is only required to make a finding of the agreement’s existence, not an evidentiary determination of its validity. [Citation.]” (*Espejo v. So. Cal. Permanente Med. Group* (2016) 246 Cal.App.4th 1047, 1058 [held defendant employer met its initial burden by attaching to petition to arbitrate a copy of the purported arbitration agreement bearing employee’s electronic signature].)

Here, there **is** a dispute as to whether Plaintiff mutually assented to the AA when she ordered her vehicle via Tesla’s online platform and electronically agreed to the AA. Plaintiff acknowledges the online interface process but argues that Tesla has not established that *she* actually engaged in the online interface process because it did not attach the actual checkout screen or the notice beside the “Place Order” button.

However, Tesla provides a declaration from its Manager of Business Resolution, Raymond Kim, who attests that Plaintiff ordered the vehicle through Tesla’s website. (Dec.Kim ¶¶ 3-4.) Mr. Kim declares that this process required Plaintiff to click a button that read “Place Order” on Tesla’s website. (*Id.* ¶ 4.) Mr. Kim declares that Plaintiff would not have been able to place the order without clicking on the button. (*Ibid.*) Prior to placing the order, Plaintiff would see text *above the “Place Order” button* advising her that “by placing this order, I agree to the” MVOA terms and conditions. (see 7/20/26 Dec.Kim ¶ 4, Ex. “3”.) This text included a hyperlink to the MVOA terms and conditions that Plaintiff could click on to review. (Dec.Kim ¶ 4.) Once executed, the MVOA is automatically saved to Plaintiff’s mytesla.com account for as long as the customer owns the vehicle. (*Ibid.*)

This constitutes a “clickwrap” agreement, where a user confirms assent by clicking a button to accept the terms and conditions. (*Sellers v. JustAnswer LLC* (2021) 73 Cal.App.5th 444, 470.) Plaintiff acknowledges that Tesla, as the proponent of the online agreement, needs to “prove that the actual interface gave reasonably conspicuous notice of the terms and made the user’s click an unambiguous manifestation of assent. (*B.D. v. Blizzard Entertainment, Inc.* (2022) 76 Cal.App.5th 931, 944; *Herzog v. Sup. Ct.* (2024) 101 Cal.App.5th 1280, 1296; *Cruz v. Tapestry, Inc.* (2025) 113 Cal.App.5th 943, 951-952.) Thus, “the full context of the transaction is critical to determining whether a given textual notice is sufficient to put an internet consumer on inquiry notice of contractual terms.” (*Sellers, supra.* at 477.)

Here, as demonstrated by Tesla, Plaintiff’s consent to be subject to a binding arbitration agreement is established by her affirmative engagement of Tesla’s website and placement of her order, which was a necessary step to purchase the vehicle.

The MVOA's arbitration provision states:

If not resolved within 60 days, you agree that any dispute arising out of or relating to any aspect of the relationship between you and Tesla will not be decided by a judge or jury but instead by a single arbitrator in an arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules. This includes claims arising before this Agreement, such as claims related to statements about our products. (Dec.Kim ¶ 3, Ex. 1, p. 3.)

Importantly, this provision also contains a 30-day opt-out clause and a supersession clause stating:

You may opt out of arbitration within 30 days after signing this Agreement by sending a letter to: Tesla, Inc. ... If you do not opt out, this agreement to arbitrate overrides any different arbitration agreement between us, including any arbitration agreement in a lease or finance contract.” (*Ibid.*)

Thus, Plaintiff accepted the terms and conditions of the MVOA including the AA because otherwise the MVOA would not end up in Tesla's internal system where it could be retrieved. (Dec.Kim ¶ 8.)

Moreover, in the Reply, Tesla points out that Plaintiff does not dispute that she *ordered* the vehicle. She declares that on 10/24/23, she “personally placed an order for a 2023 Tesla Model X on Tesla's website.” (Dec.Letts ¶ 2.) And, Plaintiff's counsel submitted a copy of the MVOA as an exhibit to the Opposition. Thus, Plaintiff electronically ordered the subject Tesla vehicle on Tesla's website. To do so, she had to agree to the terms and conditions of the MVOA. (see 7/20/26 Dec.Kim ¶ 3-4, Ex. “3”.)

Tesla also points out that Plaintiff declares she did not “recall” seeing text on Tesla's website, clicking on the hyperlink to open the MVOA, reading its terms and conditions before placing the order, or checking/clicking a box stating “I agree” or “I accept”, or agreeing to arbitration. (Dec.Letts ¶¶ 3-6, 8.) She asserts that no one at Tesla told her she could opt-out of arbitration. (*Id.* ¶ 7.) The only button she recalls clicking was the button to place her order. (*Id.* ¶ 5.) When she picked up her vehicle, she only recalls signing paperwork for her loan and insurance. (*Id.* ¶ 8.)

However, Plaintiff's inability to recall her engagement on the Tesla website to order her vehicle (other than to click the “Place Order” button) is not a proper defense to the existence of the AA. She does not dispute that she clicked on the “Place Order” button, which indicates immediately above it that by placing the order, she agreed to the terms of the hyperlinked MVOA. (Dec.Letts ¶ 2; Dec.Kim ¶¶ 3-4.) The ordering page on Tesla's website demonstrates the reasonably conspicuous notice of the terms of the MVOA including the AA. (7/20/26 Dec.Kim Ex. “3”.) It also indicated that when Plaintiff clicked the “Place Order” button, she unambiguously manifested her assent to the

MVOA, which included a provision indicating that she could opt out of the AA according to the MVOA's terms. (*Ibid.*) Moreover, Plaintiff has not produced any evidence raising any defense as to the agreement's formation. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.)

Based on the foregoing, Tesla has presented sufficient *prima facie* evidence that Plaintiff assented to the MVOA including the AA, and Plaintiff has failed to present sufficient evidence to rebut that showing. Therefore, a valid agreement to arbitrate exists under the MVOA. And, there is no dispute that the AA covers Plaintiff's claims.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601463	SHAER vs SHAER	DEMURRER ON COMPLAINT

Tentative Ruling: No tentative ruling; appearances are requested, either in person or telephonically. In her Opposition, Plaintiff notes the "parties have since filed for divorce." (Opp. p.2:21.) The motion and Reply do not mention a dissolution proceeding. The parties have not filed a Notice of Related Case that indicates an active family law proceeding is pending. At the hearing, the parties shall be prepared to address whether an active family law matter is pending before any court in any jurisdiction.